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Wisconsin Criminal Procedure

A step-by-step public guide, from arrest through completion of sentence: each hearing, what the court must do, and the choices the law provides.

Published by Paper Chasers LLC
Current as of November 2, 2026
Citations in Bluebook form

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HOW TO READ THIS GUIDE

Each stage explains what happens, what the court is required to do, and the choices Wisconsin law provides. Those choices are described as general information about the law, not as recommendations for any particular case.

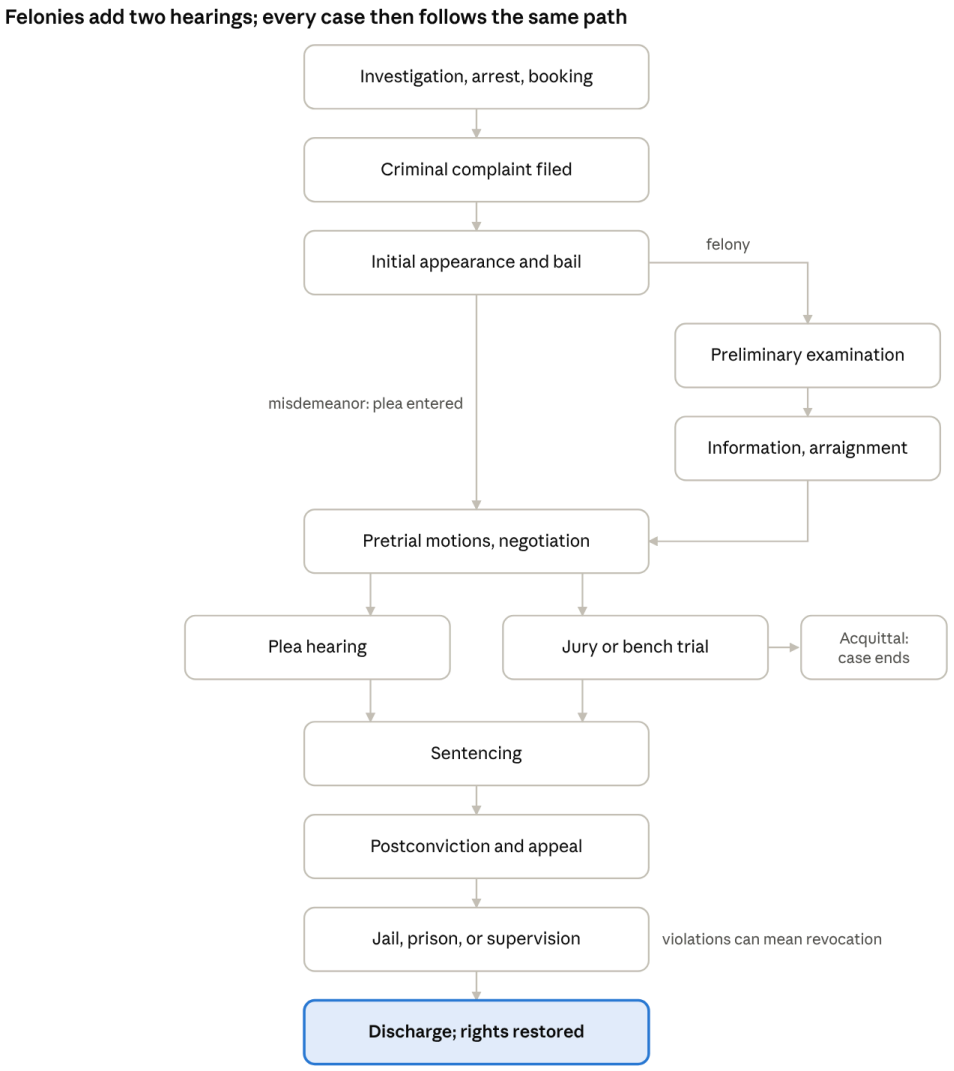
How to use this guide

A Wisconsin criminal case moves through about a dozen predictable stages, from police contact to final discharge from sentence, and at nearly every stage the law gives the accused specific rights and the court specific duties. This guide walks through each stage in order: what happens, what the judge must do, and what choices a defendant has.

The stages at a glance

1. Investigation, stop, and arrest
2. Charging: the criminal complaint
3. Initial appearance and bail
4. Right to counsel
5. Preliminary hearing (felonies only)
6. Information and arraignment
7. Pretrial motions, discovery, and negotiation
8. Plea hearing
9. Trial
10. Sentencing
11. Postconviction motions and appeal
12. Serving the sentence, supervision, revocation, and discharge

Misdemeanors skip stages 5 and 6 as separate events: the defendant enters a plea at the initial appearance and the case moves straight to pretrial. Felonies go through every stage.



Wisconsin criminal case flow · 13 steps, felony branch

A misdemeanor goes straight from the initial appearance to pretrial; a felony first passes through the preliminary examination and arraignment.

Where the rules come from

Source	What it governs
U.S. Const. amends. IV, V, VI, VIII, XIV	Searches, self-incrimination, counsel, jury, bail, due process
Wis. Const. art. I, §§ 7, 8, 9m, 11	Rights of the accused, bail, victims' rights (Marsy's Law), searches
Wis. Stat. chs. 967–979	Criminal procedure: arrest (968), bail (969), preliminary and initial appearances (970), trial and pleas (971–972), sentencing (973), postconviction (974)
Wis. Stat. ch. 809 (Rules of Appellate Procedure)	Appeal and postconviction deadlines, esp. Wis. Stat. § 809.30

Source	What it governs
Wis. Stat. chs. 301–304	Department of Corrections, prisons, extended supervision, probation, parole
Wis. Admin. Code chs. DOC 328, 331; HA 2	Supervision rules and revocation hearings
Wis. Stat. ch. 977; Wis. Admin. Code ch. PD 3	State Public Defender eligibility
Wisconsin Supreme Court and Court of Appeals decisions	How all of the above are applied

Citations follow Bluebook form. Statutes are cited to the current Wisconsin Statutes as published by the Legislative Reference Bureau; check the online statutes for any amendment after the as-of date above.

Stage 1: Investigation, stop, and arrest

Police may briefly stop a person on reasonable suspicion, but they need probable cause to arrest, and anything they learn by violating those rules can be suppressed later.

Investigative stops. An officer may stop a person in a public place for a reasonable time when the officer reasonably suspects the person is committing, is about to commit, or has committed a crime, and may demand name and address and an explanation. Wis. Stat. § 968.24; *Terry v. Ohio*, 392 U.S. 1 (1968). A pat-down for weapons is allowed only if the officer reasonably suspects danger. Wis. Stat. § 968.25.

Arrest. An officer may arrest with a warrant, or without one when there are reasonable grounds (probable cause) to believe the person committed a crime. Wis. Stat. § 968.07. Lesser offenses, including many ordinance and traffic violations, are often handled by citation rather than custodial arrest.

Searches. Both constitutions protect against unreasonable searches. U.S. Const. amend. IV; Wis. Const. art. I, § 11. A warrant is the rule; recognized exceptions include consent, search incident to arrest, exigent circumstances, plain view, and the automobile exception. A person may refuse consent to a search. Evidence found in an unlawful search may be excluded, subject to a good-faith exception. *State v. Eason*, 2001 WI 98, 245 Wis. 2d 206, 629 N.W.2d 625.

Questioning and Miranda. Before custodial interrogation, police must warn the person of the right to remain silent and the right to a lawyer. *Miranda v. Arizona*, 384 U.S. 436 (1966). The right to silence must be invoked clearly; simply staying quiet may not be enough. *Berghuis v. Thompkins*, 560 U.S. 370 (2010). Wisconsin makes it state policy to record custodial interrogations of felony suspects, subject to listed exceptions. Wis. Stat. § 968.073(2). If an unexcused, unrecorded statement is admitted in a felony jury trial, the jury may be told it can consider the missing recording. Wis. Stat. § 972.115(2). Custodial interrogations of juveniles must be recorded. *State v. Jerrell C.J.*, 2005 WI 105, 283 Wis. 2d 145, 699 N.W.2d 110.

Operating-while-intoxicated cases. Drivers are deemed to have consented to chemical testing; refusal carries separate civil penalties. Wis. Stat. § 343.305.

Booking. After arrest, the person is booked: photographed, fingerprinted, and records checked. Wis. Stat. § 165.84. Strip searches of arrested persons are tightly regulated. Wis. Stat. § 968.255.

Choices the law provides at this stage (general information only)

- A person who is lawfully stopped may be required to give a name and address. Physically resisting an officer is a separate crime, even if the arrest is later found unlawful. Wis. Stat. § 946.41.
- The rights to silence and counsel apply when clearly invoked; once a person asks for a lawyer, police questioning must stop. *Edwards v. Arizona*, 451 U.S. 477 (1981).
- A person may decline consent to a search. Declining is not obstruction, although officers may still search if another exception applies.
- Notes made soon after an arrest (names, badge numbers, times, witnesses) are often useful to defense counsel later.

Stage 2: Charging and the criminal complaint

A Wisconsin prosecution normally starts when the district attorney files a sworn criminal complaint; police can refer charges, but only the DA decides whether, and what, to charge.

The complaint. A complaint is a written statement of the essential facts, sworn before a DA or judge, showing probable cause to believe the defendant committed the crime. Wis. Stat. § 968.01(2). Ordinarily only the DA of the county where the crime allegedly occurred may issue it; if the DA refuses or is unavailable, a judge may permit filing after a hearing. Wis. Stat. § 968.02(1), (3). The facts must appear within the complaint's four corners and answer who, what, when, where, and why the defendant is probably guilty. *State v. Haugen*, 52 Wis. 2d 791, 191 N.W.2d 12 (1971); *State ex rel. Evanow v. Seraphim*, 40 Wis. 2d 223, 161 N.W.2d 369 (1968). A John Doe proceeding may also lead to charges. Wis. Stat. § 968.26. A grand jury may indict but is rarely used. Wis. Stat. §§ 968.40–.53.

Warrant or summons. On a complaint showing probable cause, the judge issues an arrest warrant or, more commonly for lower-level offenses, a summons ordering the person to appear. Wis. Stat. §§ 968.04, 968.05.

The 48-hour rule. A person arrested without a warrant and held in custody must receive a judicial determination of probable cause within 48 hours; after that, the state must show an emergency. *County of Riverside v. McLaughlin*, 500 U.S. 44 (1991); *State v. Koch*, 175 Wis. 2d 684, 499 N.W.2d 153 (1993). In practice a court commissioner reviews a probable-cause statement shortly after booking. A missed deadline usually does not end the case, but it can support suppression of evidence gained because of the delay. *See* Wis. Stat. § 970.01 annots.

Statutes of limitations. Most felonies must be charged within 6 years and most misdemeanors within 3, with longer or no limits for homicide, many sexual offenses, and certain crimes against children. Wis. Stat. § 939.74.

Felony and misdemeanor classes. The class sets the maximum penalty. Wis. Stat. §§ 939.50–.51.

Class	Maximum imprisonment	Maximum fine
A felony	Life	—
B felony	60 years	—
C felony	40 years	$100,000
D felony	25 years	$100,000
E felony	15 years	$50,000
F felony	12 years 6 months	$25,000
G felony	10 years	$25,000
H felony	6 years	$10,000
I felony	3 years 6 months	$10,000
A misdemeanor	9 months	$10,000
B misdemeanor	90 days	$1,000

Class	Maximum imprisonment	Maximum fine
C misdemeanor	30 days	$500

Repeater, domestic-abuse, hate-crime, and weapon enhancers can raise these maximums, and some offenses carry mandatory minimums. Wis. Stat. §§ 939.62, 939.621, 939.645, 939.63.

Choices the law provides at this stage (general information only)

- Before charges are filed, defense counsel may present information to the DA that bears on the charging decision.
- The CCAP website shows whether a case has been filed and the next court date.
- A summons is a court order to appear; a missed date usually results in a warrant.

Stage 3: Initial appearance and bail

The initial appearance is the defendant's first court date: the judge or court commissioner explains the charges and rights and sets release conditions. It must happen within a reasonable time after arrest, in the county where the offense allegedly occurred. Wis. Stat. § 970.01(1).

What the court must do. At the initial appearance the judge must tell the defendant, and give a copy of the complaint stating the possible penalties. Wis. Stat. § 970.02(1).

- The charge and the penalties, including any mandatory minimum. *State v. Thompson*, 2012 WI 90, 342 Wis. 2d 674, 818 N.W.2d 904.
- The right to a lawyer and, if the defendant cannot afford one, to apply to the State Public Defender. Wis. Stat. § 970.02(1)(b), (6).
- For a felony, the right to a preliminary examination, unless waived in writing or in open court. Wis. Stat. § 970.02(1)(c).
- Release conditions under chapter 969. Wis. Stat. § 970.02(2).
- That fingerprints and identification data have been taken, ordering them if not. Wis. Stat. § 970.02(7).

Misdemeanors. The defendant may enter a plea at the initial appearance. A not-guilty plea moves the case to pretrial and starts the 60-day trial clock. Wis. Stat. § 971.10(1).

Felonies. No plea is taken; the court schedules the preliminary examination. Wis. Stat. §§ 970.02(5), 970.03(3).

Bail and release conditions

Everyone charged is presumptively eligible for release before conviction under reasonable conditions. Wis. Const. art. I, § 8(2); Wis. Stat. § 969.01(1). The April 2023 constitutional amendments changed two rules, implemented by 2023 Wis. Act 3.

- **Non-monetary conditions** may be designed to assure appearance, protect the community from "serious harm," or prevent witness intimidation. "Serious harm" now covers physical pain, injury, illness, or death (including attendant emotional harm), and property damage or economic loss over $2,500. Wis. Stat. § 969.001(2m).
- **Cash bail** may be set only if the court finds a reasonable basis that bail is necessary to assure appearance, or, for a "violent crime" as defined in Wis. Stat. § 969.001(3), that bail is necessary based on the totality of the circumstances. Wis. Stat. § 969.01(1)(b). Those circumstances include prior violent convictions, flight risk, danger, witness intimidation, and potential affirmative defenses. Wis. Const. art. I, § 8(2).
- **Amount.** Bail may be no more than reasonably necessary for its purpose. Wis. Stat. § 969.01(4) lists the factors: the offense and penalty, the defendant's ties, employment, health, record, and prior failures to appear.
- **Misdemeanors** generally mean release on a signature bond unless cash is needed to assure appearance. Wis. Stat. § 969.02. **Felonies** follow Wis. Stat. § 969.03.

- **Preventive detention.** For certain serious violent felonies, the state may seek denial of release. The hearing must begin within 10 days, the defendant has the rights to counsel, witnesses, and cross-examination, and the state must prove by clear and convincing evidence that no conditions will protect the community or witnesses. If it does, release may be denied for up to 60 days, and the case gets an expedited trial. Wis. Stat. § 969.035(5)–(11).
- **No bail bondsmen.** Wisconsin does not allow commercial bail bonds. Wis. Stat. § 969.12(2). Bail is posted in cash, usually by the defendant or family.
- **Domestic-abuse arrests** carry an automatic 72-hour no-contact period. Wis. Stat. § 968.075(5).

Changing or revoking conditions. Either side may move to modify conditions at any time. Wis. Stat. § 969.08. Violating a condition is the separate crime of bail jumping, a misdemeanor in a misdemeanor case and a Class H felony in a felony case. Wis. Stat. § 946.49.

Choices the law provides at this stage (general information only)

- A defendant or counsel may ask for release on a signature bond and present information about residence, employment, family ties, and treatment.
- A defendant may ask the court to state on the record why cash bail is necessary.
- A motion to modify release conditions may be filed at any time, often with information about the defendant's finances. Wis. Stat. § 969.08.
- Release conditions, including no-contact and no-alcohol orders, stay in force until the court changes them; violations can be charged as bail jumping.

Stage 4: The right to a lawyer

A defendant facing possible jail has a constitutional right to a lawyer at every critical stage, free if he or she cannot afford one. U.S. Const. amend. VI; Wis. Const. art. I, § 7; *Gideon v. Wainwright*, 372 U.S. 335 (1963); *Argersinger v. Hamlin*, 407 U.S. 25 (1972). The right attaches when formal proceedings begin, typically at the initial appearance. *Rothgery v. Gillespie County*, 554 U.S. 191 (2008).

State Public Defender (SPD). The SPD makes the initial financial-eligibility decision, which the circuit court may review. Wis. Stat. § 977.06(4). Wis. Stat. §§ 977.05, 977.06. Its standard is strict: income is compared to 115 percent of the 2011 federal poverty guidelines, a figure frozen by statute, along with assets. Wis. Stat. § 977.02(3); Wis. Admin. Code § PD 3.03. Many working people therefore earn too much for the SPD yet cannot afford a private lawyer.

Court-appointed counsel. When the SPD finds a person ineligible but he or she genuinely cannot afford counsel, the circuit court has inherent authority, and a constitutional duty, to appoint a lawyer at county expense. *State v. Dean*, 163 Wis. 2d 503, 471 N.W.2d 310 (Ct. App. 1991). Defendants should ask the judge directly.

Representing yourself. A defendant may waive counsel, but the court must conduct a colloquy confirming the waiver is knowing, intelligent, and voluntary and that the defendant is competent to proceed alone. *Faretta v. California*, 422 U.S. 806 (1975); *State v. Klessig*, 211 Wis. 2d 194, 564 N.W.2d 716 (1997); *State v. Imani*, 2010 WI 66, 326 Wis. 2d 179, 786 N.W.2d 40.

Effective assistance. The right is to *effective* counsel; deficient performance that prejudices the outcome is grounds for relief after conviction. *Strickland v. Washington*, 466 U.S. 668 (1984). This includes plea advice. *Missouri v. Frye*, 566 U.S. 134 (2012); *Lafler v. Cooper*, 566 U.S. 156 (2012); *Padilla v. Kentucky*, 559 U.S. 356 (2010) (immigration consequences).

Choices the law provides at this stage (general information only)

- An SPD application can be started at the local SPD office or, for people in custody, through the jail.
- A person found ineligible by the SPD may ask the judge to appoint counsel and provide proof of income and expenses.
- A defendant may ask the court to replace appointed counsel for good cause, such as a complete breakdown in communication.

Stage 5: Preliminary examination (felonies only)

The preliminary examination ("prelim") is a short evidentiary hearing where a judge decides only one question: is there probable cause to believe the defendant committed a felony? Wis. Stat. § 970.03(1).

Deadlines. The prelim must begin within 10 days of the initial appearance if the defendant is in custody on bail over $500, and within 20 days otherwise. The court may extend the time on stipulation or on motion for cause. Wis. Stat. § 970.03(2). A defendant who goes forward to arraignment without objecting to a late prelim generally waives the issue. *Armstrong v. State*, 55 Wis. 2d 282, 198 N.W.2d 357 (1972).

What happens. Witnesses testify under oath and are recorded; the defense may cross-examine and present evidence. Wis. Stat. § 970.03(5). Since 2011, the state may rely on hearsay, so a single officer often summarizes what others reported. Wis. Stat. § 970.038; *State v. O'Brien*, 2014 WI 54, 354 Wis. 2d 753, 850 N.W.2d 8 (upholding the hearsay statute). The judge does not weigh credibility; the question is whether the state presents a "plausible account" of a felony. *State v. Dunn*, 121 Wis. 2d 389, 359 N.W.2d 151 (1984). The defense cannot use the prelim for general discovery. *State v. Knudson*, 51 Wis. 2d 270, 187 N.W.2d 321 (1971).

What the court must do

- If probable cause exists, bind the defendant over for trial. Wis. Stat. § 970.03(7).
- In a multi-count complaint, dismiss any count lacking probable cause. Wis. Stat. § 970.03(10).
- If no probable cause exists, discharge the defendant. Wis. Stat. § 970.03(9). The state may refile and seek a new examination. Wis. Stat. § 970.04.

Waiving the prelim. A defendant may waive the examination, and the judge then binds the case over. Wis. Stat. § 970.02(4). Waiver is often a negotiated step, sometimes in exchange for a plea offer or to avoid additional charges. Juveniles charged in adult court have a modified hearing. Wis. Stat. §§ 970.032, 970.035.

Choices the law provides at this stage (general information only)

- Holding the hearing tests the state's evidence and preserves witness testimony under oath.
- Waiver is often part of plea negotiations.
- An objection to a missed deadline is generally waived if not made before the plea.

Stage 6: Information and arraignment

After bindover, the DA files an information, the formal felony charging document, and the defendant is arraigned on it and enters a plea.

The information. It must be filed within 30 days after the prelim or its waiver. Wis. Stat. § 971.01(2). It may include charges not in the complaint if they are not wholly unrelated to the transactions shown at the prelim. *State v. Williams*, 198 Wis. 2d 516, 544 N.W.2d 406 (1996).

Arraignment. The court reads the information or the defendant waives reading, gives the defendant a copy, and asks for a plea. Wis. Stat. § 971.05. Many counties hold arraignment immediately after the prelim.

The four pleas. Wis. Stat. § 971.06(1).

Plea	What it means
Not guilty	Denies the charge; the state must prove it beyond a reasonable doubt
Guilty	Admits the charge; leads to a plea hearing and sentencing
No contest	Does not contest the charge, with the court's approval; treated as guilty for the criminal case, but the plea cannot be used as evidence in a later civil suit, Wis. Stat. § 904.10
Not guilty by reason of mental disease or defect (NGI)	Claims lack of substantial capacity to appreciate wrongfulness or conform conduct, Wis. Stat. § 971.15; may be joined with not guilty

If the defendant stands mute, the court enters a not-guilty plea. Wis. Stat. § 971.06(2).

Substitution of judge. A defendant may substitute the assigned trial judge once, without stating a reason, by a timely written request, generally before making any motion or before arraignment. Wis. Stat. § 971.20. Missing the window loses the right; removal later requires showing actual bias. *See* Wis. Stat. § 757.19.

Choices the law provides at this stage (general information only)

- A not-guilty plea preserves all defenses and is the usual plea at arraignment.
- The deadline for substitution of judge generally falls before arraignment.
- An NGI plea is normally entered at arraignment; a later NGI plea requires court permission. Wis. Stat. § 971.06(1)(d).

Stage 7: Pretrial: discovery, motions, and negotiation

Most cases are decided in the pretrial phase, through discovery, motions, and plea negotiation, long before any jury is seated. Courts typically hold status conferences and a final pretrial conference to track progress.

Discovery

On demand, the DA must disclose, within a reasonable time before trial, the defendant's statements, criminal record, witness list with prior records, relevant witness statements, expert reports, physical evidence, and any exculpatory evidence. Wis. Stat. § 971.23(1). Separately, due process requires disclosure of evidence favorable to the defense, including impeachment evidence, whether or not requested. *Brady v. Maryland*, 373 U.S. 83 (1963); *Giglio v. United States*, 405 U.S. 150 (1972); *State v. Harris*, 2004 WI 64, 272 Wis. 2d 80, 680 N.W.2d 737. The defense has reciprocal duties: its witness list, expert reports, and notice of an alibi. Wis. Stat. § 971.23(2m), (8). The court may exclude evidence a party failed to disclose. Wis. Stat. § 971.23(7m).

Pretrial motions

Most defenses and objections, including suppression of evidence and challenges to the complaint or information, must be raised before trial. Wis. Stat. § 971.31(2). Common motions:

Motion	Purpose	Key authority
Suppress evidence	Exclude evidence from an unlawful stop, search, or arrest	U.S. Const. amend. IV; Wis. Const. art. I, § 11; Wis. Stat. § 968.24
Suppress statements	Exclude statements taken in violation of *Miranda* or that were involuntary	*Miranda*, 384 U.S. 436; *State v. Jiles*, 2003 WI 66, 262 Wis. 2d 457, 663 N.W.2d 798
Dismiss	Complaint lacks probable cause, statute of limitations, double jeopardy, defective charge	Wis. Stat. §§ 971.31, 939.74
Sever or join	Separate counts or codefendants, or try them together	Wis. Stat. § 971.12
Change venue	Move the trial when local prejudice prevents a fair jury	Wis. Stat. § 971.22
Other-acts evidence	Admit or exclude prior bad acts	Wis. Stat. § 904.04(2); *State v. Sullivan*, 216 Wis. 2d 768, 576 N.W.2d 30 (1998)
Speedy trial demand	Start the statutory clock	Wis. Stat. § 971.10

Factual disputes on suppression are resolved at an evidentiary hearing, where the state usually bears the burden of justifying a warrantless search.

Speedy trial

Misdemeanor trials must begin within 60 days of the initial appearance. A felony trial must begin within 90 days of a written or on-the-record demand made after the information is filed. Wis. Stat. § 971.10(1)–(2). The court may grant continuances when the ends of justice outweigh the interest in speed, after considering victims' interests. Wis. Stat. § 971.10(3). The statutory remedy is release from custody, not dismissal. Wis. Stat. § 971.10(4). The separate constitutional right is judged by four factors: length of delay, reason, assertion of the right, and prejudice. *Barker v. Wingo*, 407 U.S. 514 (1972); *State v. Urdahl*, 2005 WI App 191, 286 Wis. 2d 476, 704 N.W.2d 324. A prisoner held elsewhere in Wisconsin may request prompt disposition, triggering a 120-day clock for felonies. Wis. Stat. § 971.11.

Competency

A person may not be tried while unable to understand the proceedings or assist in the defense. *Dusky v. United States*, 362 U.S. 402 (1960); Wis. Stat. § 971.13. If there is reason to doubt competency, the court must order an examination: 30 days for outpatient, 15 for inpatient. Wis. Stat. § 971.14(2). If the defendant is found incompetent but likely to be restored, the court may commit him or her for treatment for up to 12 months or the maximum sentence, whichever is less, and the period cannot be tolled. Wis. Stat. § 971.14(5)(a); *State v. Green*, 2022 WI 30, 401 Wis. 2d 542, 973 N.W.2d 770.

Mental-responsibility (NGI) defense

An NGI plea produces a two-phase trial: first guilt, then mental responsibility, where the defendant must prove the defense to a reasonable certainty by the greater weight of the evidence. Wis. Stat. §§ 971.15, 971.165. A successful NGI defense leads to commitment to the Department of Health Services rather than prison, for up to the maximum sentence. Wis. Stat. § 971.17.

Plea negotiations

Most cases resolve by plea agreement: reduced or dismissed charges, "read-in" counts, or a joint or capped sentencing recommendation. The judge is not bound by any recommendation. Wis. Stat. § 971.08; *State v. Hampton*, 2004 WI 107, 274 Wis. 2d 379, 683 N.W.2d 14. The DA must keep the bargain; a breach can entitle the defendant to resentencing or plea withdrawal. *Santobello v. New York*, 404 U.S. 257 (1971). Defense counsel must communicate every formal offer. *Frye*, 566 U.S. 134. Victims have a right to confer with the prosecutor about the plea. Wis. Const. art. I, § 9m; Wis. Stat. § 971.095.

Diversion and alternatives

Option	Who it serves	Result on success	Authority
Deferred prosecution agreement (DPA)	Defendants the DA selects; statutory models include community-service DPAs and, in counties under 100,000, DOC-monitored DPAs	Charges dismissed with prejudice	Wis. Stat. §§ 971.38–.40
Domestic and child-abuse DPA	Specified intrafamily cases	Charges dismissed with prejudice	Wis. Stat. § 971.37

Option	Who it serves	Result on success	Authority
Treatment Alternatives and Diversion (TAD)	Substance-use and mental-health cases	Diversion or reduced sentence	Wis. Stat. § 165.95
Treatment courts (drug, OWI, veterans, mental health)	Eligible defendants in participating counties	Often a reduced charge or sentence	County programs; Wis. Stat. § 165.95
Deferred entry of judgment	Plea held open while conditions are met	Amended or dismissed charge	Negotiated terms

OWI offenses cannot be resolved by deferred prosecution. Wis. Stat. § 967.055(3). Statements made in deferred-prosecution discussions are generally inadmissible if prosecution resumes. Wis. Stat. §§ 971.37(4), 971.39(2).

Choices the law provides at this stage (general information only)

- Defendants may review the discovery in their case with counsel.
- A speedy-trial demand starts a statutory clock but also shortens the time available to prepare a defense.
- Diversion, deferred prosecution, and treatment courts generally require the DA's agreement or program admission.
- Plea offers can carry collateral consequences for driving, firearms, immigration, employment, housing, and sex-offender registration; see Stage 10.

Stage 8: The plea hearing

A guilty or no-contest plea gives up the right to trial, so before accepting one the judge must personally confirm, on the record, that the defendant understands what is being given up and is acting voluntarily. Wis. Stat. § 971.08; *Boykin v. Alabama*, 395 U.S. 238 (1969).

What the court must do (the plea colloquy)

1. Address the defendant personally and determine that the plea is made voluntarily, with understanding of the nature of the charge and the potential punishment. Wis. Stat. § 971.08(1)(a).
2. Determine that the defendant in fact committed the crime (a factual basis). Wis. Stat. § 971.08(1)(b).
3. Personally give the immigration warning: a conviction may result in deportation, exclusion from admission, or denial of naturalization. Wis. Stat. § 971.08(1)(c). If the court skips it and the plea is likely to cause those consequences, the defendant may withdraw the plea. Wis. Stat. § 971.08(2).
4. Inquire about any promises or agreements and tell the defendant the court is not bound by the plea agreement or any sentencing recommendation. *State v. Hampton*, 2004 WI 107; *State v. Brown*, 2006 WI 100, ¶ 35, 293 Wis. 2d 594, 716 N.W.2d 906.
5. Explain the constitutional rights being waived: jury trial, confronting witnesses, remaining silent, testifying and calling witnesses, and requiring the state to prove guilt beyond a reasonable doubt. *Brown*, 2006 WI 100, ¶ 35.
6. Confirm the defendant's education, ability to understand, and that he or she is not impaired; confirm counsel discussed the case and any defenses. *Id.*; *State v. Bangert*, 131 Wis. 2d 246, 389 N.W.2d 12 (1986).
7. Explain the effect of any read-in charges, which the court may consider at sentencing and which cannot later be prosecuted. *State v. Straszkowski*, 2008 WI 65, 310 Wis. 2d 259, 750 N.W.2d 835.

Most courts also use a written Plea Questionnaire/Waiver of Rights form (CR-227), but the form supplements, and does not replace, the judge's personal colloquy. *State v. Hoppe*, 2009 WI 41, 317 Wis. 2d 161, 765 N.W.2d 794.

Alford pleas. A defendant may plead guilty while maintaining innocence if strong proof of guilt exists, but only if the court and, in practice, the DA accept it. *North Carolina v. Alford*, 400 U.S. 25 (1970); *State v. Garcia*, 192 Wis. 2d 845, 532 N.W.2d 111 (1995).

Withdrawing a plea

When	Standard	Authority
Before sentencing	Any fair and just reason, absent substantial prejudice to the state	*State v. Jenkins*, 2007 WI 96, 303 Wis. 2d 157, 736 N.W.2d 24
After sentencing, defective colloquy	Defendant shows a colloquy defect and alleges not knowing the omitted information; burden shifts to the state	*Bangert*, 131 Wis. 2d 246; *Brown*, 2006 WI 100
After sentencing, facts outside the record	Manifest injustice, shown by clear and convincing evidence, such as ineffective counsel	*State v. Bentley*, 201 Wis. 2d 303, 548 N.W.2d 50 (1996); *Nelson v. State*, 54 Wis. 2d 489, 195 N.W.2d 629 (1972)

When	Standard	Authority
Missing immigration warning	Statutory right if consequences are likely	Wis. Stat. § 971.08(2); *State v. Douangmala*, 2002 WI 62, 253 Wis. 2d 173, 646 N.W.2d 1

Choices the law provides at this stage (general information only)

- A defendant may tell the judge if any part of the plea questionnaire or colloquy is unclear, or if a promise was made that is not on the record.
- Medications or conditions that affect understanding bear on whether a plea is knowing and voluntary.
- A court may adjourn a plea hearing when the defendant needs more time to understand its consequences.
- A guilty plea generally waives non-jurisdictional defects, but Wisconsin preserves appellate review of a denied suppression motion. Wis. Stat. § 971.31(10).

Stage 9: Trial

At trial the state must prove every element of every charge beyond a reasonable doubt to a unanimous jury, or to the judge if the defendant validly waives a jury. U.S. Const. amend. VI; Wis. Const. art. I, § 7; *In re Winship*, 397 U.S. 358 (1970); *Ramos v. Louisiana*, 590 U.S. 83 (2020).

Jury or judge. Felony juries have 12 members and misdemeanor juries 6. Wis. Stat. § 756.06(2). A defendant may waive a jury only in writing or in open court, with the court's approval and the state's consent, and the judge must personally confirm the waiver is knowing and voluntary. Wis. Stat. § 972.02(1); *State v. Anderson*, 2002 WI 7, 249 Wis. 2d 586, 638 N.W.2d 301.

The order of trial

1. **Jury selection (voir dire).** Jurors who cannot be impartial are removed for cause. Each side also has peremptory strikes, generally 4, or 6 when life imprisonment is possible. Wis. Stat. § 972.03. Strikes based on race or sex are forbidden. *Batson v. Kentucky*, 476 U.S. 79 (1986); *J.E.B. v. Alabama ex rel. T.B.*, 511 U.S. 127 (1994).
2. **Preliminary instructions.** The judge explains the presumption of innocence and the jurors' role.
3. **Opening statements.** The state goes first; the defense may open then or wait until its case begins. Wis. Stat. § 972.10(1)–(3).
4. **State's case.** Witnesses testify and are cross-examined. The defendant may confront the witnesses against him or her, and testimonial hearsay from an absent witness is barred unless there was a prior opportunity to cross-examine. *Crawford v. Washington*, 541 U.S. 36 (2004); Wis. Stat. ch. 908.
5. **Motion to dismiss.** At the close of the state's case the defense may move to dismiss for insufficient evidence. Wis. Stat. § 972.10(4).
6. **Defense case.** The defense may call witnesses and present evidence, or present nothing; the burden never shifts. The defendant alone decides whether to testify, and the judge should confirm that choice on the record. *State v. Weed*, 2003 WI 85, 263 Wis. 2d 434, 666 N.W.2d 485. A defendant's silence cannot be used against him or her. *Griffin v. California*, 380 U.S. 609 (1965).
7. **Rebuttal.** The state may answer new defense evidence.
8. **Jury instructions.** The judge instructs on the elements, defenses, burden of proof, and any lesser-included offenses supported by the evidence, using the Wisconsin pattern instructions. Wis. Stat. §§ 939.66, 972.10(5); Wis. JI-Criminal 140 (burden of proof).
9. **Closing arguments.** The state argues first and may rebut. Wis. Stat. § 972.10(5).
10. **Deliberation and verdict.** The verdict must be unanimous on each count. If jurors cannot agree, the judge may declare a mistrial and the state may retry. An acquittal is final; double jeopardy bars retrial. U.S. Const. amend. V; Wis. Const. art. I, § 8(1).

After the verdict. A guilty verdict leads to sentencing, sometimes immediately for misdemeanors and usually after a presentence investigation for felonies. Bail may be revisited after conviction. Wis. Stat. § 969.01(2). Postverdict challenges to the evidence or trial errors are generally raised through the postconviction process in Stage 11.

Choices the law provides at this stage (general information only)

- The decision whether to testify belongs to the defendant, after consulting counsel.
- Either side may request instructions on lesser-included offenses and on defenses the evidence supports, such as self-defense. Wis. Stat. § 939.48.
- Errors not objected to at trial are generally harder to raise on appeal.

Stage 10: Sentencing

Wisconsin judges have wide sentencing discretion within the statutory maximum, but they must explain on the record how the sentence they choose serves identified objectives. *State v. Gallion*, 2004 WI 42, 270 Wis. 2d 535, 678 N.W.2d 197; *McCleary v. State*, 49 Wis. 2d 263, 182 N.W.2d 512 (1971).

Presentence investigation (PSI). In felony cases the court may order the Department of Corrections to prepare a PSI on the defendant's background, record, and risk; the defense may submit its own alternative report. Wis. Stat. § 972.15. Risk-assessment scores may inform but cannot decide the sentence. *State v. Loomis*, 2016 WI 68, 371 Wis. 2d 235, 881 N.W.2d 749. The defendant has a due-process right to be sentenced on accurate information and should correct errors in the PSI before or at sentencing. *State v. Tiepelman*, 2006 WI 66, 291 Wis. 2d 179, 717 N.W.2d 1.

What happens at the hearing

1. The court confirms the parties have reviewed the PSI and resolves disputes about its accuracy.
2. The prosecutor gives a recommendation, honoring any plea agreement.
3. Victims may make a statement or submit one in writing. Wis. Stat. §§ 972.14(3), 950.04(1v)(m); Wis. Const. art. I, § 9m.
4. Defense counsel presents mitigation and a recommendation.
5. The defendant has the right to speak on his or her own behalf (allocution). Wis. Stat. § 972.14(2).
6. The court states its reasons and imposes sentence.

What the court must do

- Identify the primary sentencing objectives (protection of the public, punishment, rehabilitation, deterrence) and the facts relevant to them, and explain why the sentence is the minimum custody consistent with those objectives. *Gallion*, 2004 WI 42, ¶¶ 40–46.
- Consider the three primary factors: the gravity of the offense, the character of the offender, and the need to protect the public. *Id.* ¶ 43.
- Not rely on improper factors such as race, gender, or the exercise of the right to trial. *State v. Harris*, 2010 WI 79, 326 Wis. 2d 685, 786 N.W.2d 409.
- For a prison sentence, decide whether the defendant is eligible for the Earned Release (substance abuse) Program and the Challenge Incarceration Program. Wis. Stat. § 973.01(3g), (3m); Wis. Stat. §§ 302.05, 302.045.
- Award credit for every day spent in custody in connection with the conduct. Wis. Stat. § 973.155.
- Order restitution to victims unless there is substantial reason not to, considering ability to pay. Wis. Stat. § 973.20.
- Decide on expungement at sentencing if the defendant is eligible, because the decision cannot be made later. Wis. Stat. § 973.015; *State v. Matasek*, 2014 WI 27, 353 Wis. 2d 601, 846 N.W.2d 811; *State v. Arberry*, 2018 WI 7, 379 Wis. 2d 254, 905 N.W.2d 832.

Sentencing options

Probation. The court may withhold sentence, or impose and stay a sentence, and place the defendant on probation with conditions, including up to one year of conditional jail time. Wis. Stat. § 973.09(1), (4). Probation is not available for crimes punishable by life imprisonment. Wis. Stat. § 973.09(1)(c). Terms: Wis. Stat. § 973.09(2).

Offense	Probation term
Felony	1 year up to the greater of the maximum term of imprisonment or 3 years
Misdemeanor involving a firearm, domestic abuse, or a chapter 948 crime	6 months to 2 years
Other Class A misdemeanor	6 months to 1 year
Other misdemeanor	Up to 1 year

Jail. Misdemeanor sentences are served in county jail, often with Huber work-release privileges and good-time credit of one-quarter of the term. Wis. Stat. §§ 303.08, 302.43.

Prison: truth-in-sentencing. For felonies committed on or after December 31, 1999, a prison sentence is "bifurcated" into initial confinement followed by extended supervision. There is no parole and no early release for good behavior; the confinement term is served in full unless modified by a program or court order. Wis. Stat. § 973.01. Initial confinement must be at least one year, and extended supervision at least 25 percent of the confinement term. Wis. Stat. § 973.01(2)(b), (d).

Class	Max total	Max initial confinement	Max extended supervision
B	60 years	40 years	20 years
C	40 years	25 years	15 years
D	25 years	15 years	10 years
E	15 years	10 years	5 years
F	12.5 years	7.5 years	5 years
G	10 years	5 years	5 years
H	6 years	3 years	3 years
I	3.5 years	1.5 years	2 years

Wis. Stat. § 973.01(2)(b), (d). A Class A felony carries life imprisonment, and the court sets the extended-supervision eligibility date or denies it. Wis. Stat. § 973.014(1g).

Money. Fines (Wis. Stat. §§ 939.50–.51), court costs, surcharges including the DNA surcharge (Wis. Stat. § 973.046), and restitution (Wis. Stat. § 973.20). Unpaid amounts can become a civil judgment. Wis. Stat. § 973.09(3)(b).

Concurrent or consecutive. The court decides whether multiple sentences run at the same time or back to back. Wis. Stat. § 973.15(2).

Expungement

Wisconsin's expungement rule is narrow. The court may order, at sentencing only, that the record be expunged upon successful completion of the sentence if all of the following apply. Wis. Stat. § 973.015(1m)(a)1.

- The defendant was under 25 when the offense was committed.
- The maximum imprisonment for the offense is 6 years or less (misdemeanors and Class H and I felonies).
- The court finds the person will benefit and society will not be harmed.
- The offense is not excluded, such as most violent felonies. Wis. Stat. § 973.015(1m)(a)2.–3.

Broader reform bills, which would remove the age limit and allow later petitions, have repeatedly passed the Assembly but stalled in the Senate, most recently when the 2026 session adjourned, so current law is unchanged as of this guide's date. Expungement seals the court file, including CCAP, but does not erase DOJ or federal criminal-history records.

Collateral consequences

A conviction can carry consequences outside the sentence itself, imposed by other statutes and agencies. Courts generally need not warn of them, except the immigration warning at a plea. Wis. Stat. § 971.08(1)(c).

Area	Possible consequence	Authority
Firearms	Felony convictions and misdemeanor domestic-violence convictions bar possession	Wis. Stat. § 941.29; 18 U.S.C. § 922(g)(1), (g)(9)
Driving	OWI and certain other convictions trigger license revocation	Wis. Stat. §§ 343.30, 343.305
Immigration	Deportation, inadmissibility, or denial of naturalization	*Padilla*, 559 U.S. 356
Sex-offender registry	Registration for listed offenses	Wis. Stat. § 301.45
DNA	Sample required for felonies and certain misdemeanors	Wis. Stat. § 973.047
Employment and licensing	Employers may consider convictions substantially related to the job	Wis. Stat. § 111.335

Choices the law provides at this stage (general information only)

- Mitigation may be presented at sentencing, such as letters, treatment records, employment, and family responsibilities.
- Errors in the PSI may be raised before or at sentencing; uncorrected errors are harder to fix later.
- The court rules on ERP, CIP, and expungement eligibility at sentencing.
- The sentence-credit calculation becomes part of the judgment of conviction.
- The 20-day deadline to begin postconviction proceedings runs from sentencing (Stage 11).

Stage 11: Postconviction motions and appeal

A convicted defendant has one appeal as of right, but Wisconsin's process starts with a short, strict deadline: a notice of intent to pursue postconviction relief must be filed within 20 days after sentencing. Wis. Stat. § 809.30(2)(b). The court must advise the defendant of this right at sentencing. Wis. Stat. § 973.18.

The direct-appeal sequence (Wis. Stat. § 809.30)

1. **Notice of intent:** within 20 days of sentencing, filed in the circuit court and stating whether the defendant seeks SPD representation.
2. **Appointment and record:** the SPD determines eligibility and appoints appellate counsel; transcripts and the court record are ordered and served.
3. **Postconviction motion or notice of appeal:** within 60 days after service of the transcripts and record. Claims that depend on facts outside the record, such as ineffective trial counsel or plea withdrawal, must first be raised by postconviction motion in the circuit court. Wis. Stat. § 809.30(2)(h); Wis. Stat. § 974.02.
4. **Circuit court decision:** the motion is generally decided within 60 days unless extended. Wis. Stat. § 809.30(2)(i).
5. **Notice of appeal:** within 20 days after the order deciding the motion. Wis. Stat. § 809.30(2)(j).
6. **Court of Appeals:** briefs, then a written decision. Most misdemeanor appeals are decided by one judge. Wis. Stat. § 752.31.
7. **Wisconsin Supreme Court:** a petition for review must be filed within 30 days of the Court of Appeals decision; review is discretionary. Wis. Stat. § 809.62.

Deadlines may be extended on motion to the Court of Appeals, but a defendant should never rely on that. Wis. Stat. § 809.82(2).

Ineffective assistance claims. The defendant must show deficient performance and prejudice. *Strickland*, 466 U.S. 668. Trial counsel must testify at an evidentiary hearing (a *Machner* hearing) before the claim can succeed. *State v. Machner*, 92 Wis. 2d 797, 285 N.W.2d 905 (Ct. App. 1979).

Sentence modification. A motion to modify a sentence may be filed within 90 days of sentencing. Wis. Stat. § 973.19. At any time, a court may modify a sentence based on a "new factor" (a fact highly relevant to sentencing that was unknown or overlooked) shown by clear and convincing evidence. *State v. Harbor*, 2011 WI 28, 333 Wis. 2d 53, 797 N.W.2d 828. A sentence based on inaccurate information may also be challenged. *Tiepelman*, 2006 WI 66.

Collateral attack after the appeal. After the time for direct appeal, a prisoner or supervisee may raise constitutional or jurisdictional claims by motion under Wis. Stat. § 974.06. Claims that could have been raised earlier are barred absent a sufficient reason. *State v. Escalona-Naranjo*, 185 Wis. 2d 168, 517 N.W.2d 157 (1994). Claims of ineffective appellate counsel go to the Court of Appeals by habeas petition. *State v. Knight*, 168 Wis. 2d 509, 484 N.W.2d 540 (1992).

Federal habeas corpus. After exhausting state remedies, a state prisoner may petition a federal district court, generally within one year after the conviction becomes final. 28 U.S.C. §§ 2244(d), 2254.

Pardon. The Governor may grant a pardon after conviction. Wis. Const. art. V, § 6. Applications go through the Governor's Pardon Advisory Board, which has its own eligibility rules, including waiting periods after completion of sentence.

Choices the law provides at this stage (general information only)

- A notice of intent filed within 20 days preserves postconviction and appeal rights, even if the defendant later decides not to pursue them.
- Facts outside the court record, such as trial counsel's advice, must be raised by postconviction motion to be considered.
- A sentence-modification motion is available within 90 days of sentencing, and later for a new factor.

Stage 12: Serving the sentence, supervision, revocation, and discharge

A sentence ends only when the Department of Corrections (DOC) issues a discharge from every part of it, including probation or extended supervision, and violations along the way can send a person back to jail or prison through an administrative revocation process.

In custody

- **Jail** sentences are run by the county sheriff, with possible Huber work release and good time. Wis. Stat. §§ 303.08, 302.43.
- **Prison** sentences are served in DOC institutions. A truth-in-sentencing confinement term is served in full unless shortened by a court-ordered program or adjustment, and it can be extended for serious misconduct. Wis. Stat. § 302.113(2)–(3).
- **Earned Release Program (substance abuse) and Challenge Incarceration Program.** If the judge found the person eligible at sentencing and DOC places him or her, successful completion converts the remaining confinement time to extended supervision; the total sentence length stays the same. Wis. Stat. §§ 302.05(3)(c), 302.045(3m).
- **Sentence adjustment.** After serving 85 percent of the confinement term for a Class C–E felony, or 75 percent for a Class F–I felony, an inmate may petition the sentencing court once per sentence to shorten confinement. Wis. Stat. § 973.195(1g), (1r). The statute says a timely objection by the DA or a qualifying victim requires denial, though a majority of the Wisconsin Supreme Court has treated the DA's objection as not binding on the court. *State v. Stenklyft*, 2005 WI 71, 281 Wis. 2d 484, 697 N.W.2d 769. Wis. Stat. § 973.195(1r)(c)–(d). Class A and B felonies are excluded.
- **Older sentences.** People sentenced for offenses before December 31, 1999, remain under the old parole system, with discretionary parole and mandatory release dates. Wis. Stat. §§ 302.11, 304.06.

Community supervision

Probation, extended supervision, and parole are supervised by DOC agents under court-ordered conditions and DOC rules. Wis. Stat. §§ 973.09, 302.113; Wis. Admin. Code ch. DOC 328. Common rules include reporting, travel permission, no new crimes, employment, treatment, and paying obligations.

- **Early discharge from probation.** On DOC petition, the court may discharge a probationer who has completed 50 percent of the term and met all conditions, with exclusions for certain offenses and registrants. Wis. Stat. § 973.09(3)(d).
- **Extended supervision** runs its full term: DOC may not discharge a person until the entire bifurcated sentence is served. Wis. Stat. § 973.01(7). Proposals to allow early discharge have been introduced but not enacted as of this guide's date.
- **Extension of probation** is possible for cause, including unpaid restitution. Wis. Stat. § 973.09(3)(a), (c).

Holds and revocation

An agent may detain a supervisee (a "hold") pending investigation of a violation. Wis. Admin. Code § DOC 328.27. DOC may impose alternatives to revocation (ATR), such as treatment or short sanctions, or seek revocation. Due process requires notice, a preliminary hearing, and a final hearing before a neutral decision-maker. *Morrissey v. Brewer*, 408 U.S. 471 (1972); *Gagnon v. Scarpelli*, 411 U.S. 778 (1973).

1. **Preliminary hearing.** For a person detained, held within 5 working days unless waived, to decide probable cause for the violation. Wis. Admin. Code § DOC 331.05(4).
2. **Final hearing.** Before an administrative law judge of the Division of Hearings and Appeals (DHA), beginning within 50 calendar days of detention in a county facility. Wis. Admin. Code § HA 2.05(4)(a); Wis. Stat. § 302.335. The supervisee may have counsel (usually through the SPD), present witnesses and documents, and question adverse witnesses.
3. **Decision.** The ALJ issues a written decision within 10 days, deciding whether a violation occurred and whether revocation is warranted, or whether alternatives suffice. Wis. Admin. Code § HA 2.05(7)(h).
4. **Administrative appeal.** Either side may appeal to the DHA administrator within 10 days; the administrator generally decides within 21 days. Wis. Admin. Code § HA 2.05(8)–(9).
5. **Court review.** Judicial review is by writ of certiorari in the county of conviction, filed within 45 days of the final decision. *State ex rel. Johnson v. Cady*, 50 Wis. 2d 540, 185 N.W.2d 306 (1971); Wis. Stat. § 893.735.

What happens after revocation

Status revoked	Consequence	Authority
Probation, sentence withheld	Returned to the sentencing court for sentencing on the original offense	Wis. Stat. § 973.10(2)(a)
Probation, sentence imposed and stayed	The stayed sentence takes effect	Wis. Stat. § 973.10(2)(b)
Extended supervision	Returned to the sentencing court, which sets reconfinement of up to the remaining extended-supervision time	Wis. Stat. § 302.113(9)(am)
Parole (pre-2000 sentences)	Returned to prison for up to the remaining sentence, as set by DHA	Wis. Stat. § 302.11(7)

Time held on a probation or supervision hold generally counts as sentence credit. Wis. Stat. § 973.155(1)(b).

Discharge and restoration of rights

At the end of the sentence, DOC issues a certificate of discharge. Wis. Stat. §§ 973.09(5), 973.01(7). Expungement ordered at sentencing takes effect when the discharge certificate reaches the court. Wis. Stat. § 973.015(2).

Right	Status after a felony conviction	Authority
Voting	Restored automatically on completion of the sentence, including all supervision	Wis. Stat. §§ 6.03(1)(b), 304.078(3)
Jury service	Restored on completion of the sentence	Wis. Stat. §§ 756.02, 304.078(3)

Right	Status after a felony conviction	Authority
Firearms	Prohibited for life unless pardoned	Wis. Stat. § 941.29
Public office	Barred unless pardoned	Wis. Const. art. XIII, § 3(2)
Employment	Protected against discrimination unless the conviction is substantially related to the job	Wis. Stat. §§ 111.321, 111.335

Choices the law provides at this stage (general information only)

- Supervision rules are provided in writing, and agents approve or deny requests such as travel.
- A person on a hold may contact the SPD about representation and may ask about alternatives to revocation.
- Eligibility dates for sentence adjustment, ERP, and CIP are calculated from the sentence and can be verified with DOC.
- The discharge certificate is the official record that the sentence is complete.

Quick reference

Key deadlines

Event	Deadline	Authority
Probable-cause review after warrantless arrest	48 hours	*County of Riverside v. McLaughlin*, 500 U.S. 44 (1991)
Preventive-detention hearing	Begins within 10 days of detention	Wis. Stat. § 969.035(5)
Preliminary examination, in custody on bail over $500	10 days from initial appearance	Wis. Stat. § 970.03(2)
Preliminary examination, all others	20 days from initial appearance	Wis. Stat. § 970.03(2)
Information filed	30 days after prelim or waiver	Wis. Stat. § 971.01(2)
Misdemeanor trial	60 days from initial appearance	Wis. Stat. § 971.10(1)
Felony trial after demand	90 days from demand	Wis. Stat. § 971.10(2)
Competency examination report	30 days outpatient, 15 inpatient	Wis. Stat. § 971.14(2)
Notice of intent to pursue postconviction relief	20 days after sentencing	Wis. Stat. § 809.30(2)(b)
Postconviction motion or notice of appeal	60 days after transcripts and record served	Wis. Stat. § 809.30(2)(h)
Sentence modification motion	90 days after sentencing	Wis. Stat. § 973.19
Petition for review, Wisconsin Supreme Court	30 days after Court of Appeals decision	Wis. Stat. § 809.62
Federal habeas petition	1 year after conviction is final	28 U.S.C. § 2244(d)
Revocation final hearing, detained	Begins within 50 days	Wis. Admin. Code § HA 2.05(4)(a)
Appeal of ALJ revocation decision	10 days	Wis. Admin. Code § HA 2.05(8)
Certiorari review of revocation	45 days	Wis. Stat. § 893.735

Glossary

Term	Meaning
Bindover	The order sending a felony to trial after a prelim finds probable cause
CCAP	Wisconsin Circuit Court Access, the public online case-record site
Colloquy	The judge's personal questioning of the defendant on the record
Extended supervision (ES)	Community supervision that follows prison confinement under truth-in-sentencing
Information	The formal felony charging document filed after bindover

Term	Meaning
Read-in	An uncharged or dismissed offense the court may consider at sentencing; it cannot be prosecuted later
Signature bond	Release on a written promise to appear and follow conditions, without cash
PSI	Presentence investigation report prepared by DOC
ATR	Alternative to revocation
DHA	Division of Hearings and Appeals, which conducts revocation hearings

Where to get help

- **Wisconsin State Public Defender:** eligibility applications and local offices, wispd.gov.
- **Wisconsin Court System:** CCAP case search, self-help, and standard criminal forms, wicourts.gov.
- **Wisconsin State Law Library:** statutes, jury instructions, and research help, wilawlibrary.gov.
- **Wisconsin Statutes and Administrative Code:** official text, docs.legis.wisconsin.gov.
- **State Bar of Wisconsin Lawyer Referral and Information Service:** referrals to private attorneys, wisbar.org.
- **Department of Corrections:** supervision rules and offender locator, doc.wi.gov.

Sources

- Wis. Const. art. I, § 8 (as amended Apr. 4, 2023); 2023 Wis. Act 3: 2023 Wis. Act 3; 2023 S.J. Res. 2.
- Wis. Stat. ch. 969 (2023–24, updated through 2025 Wis. Act 103): chapter 969; § 969.035.
- Wis. Stat. ch. 970: chapter 970.
- Wis. Stat. § 971.10: speedy trial; §§ 971.37–.41: deferred prosecution.
- Wis. Stat. § 971.14: competency annotations.
- Wis. Stat. § 973.09: probation; § 973.195: sentence adjustment.
- Wis. Stat. § 973.015 and Wis. JI-Criminal SM-36 (Nov. 2025): SM-36; 2026 status of reform: Gimbel, Reilly, Guerin & Brown.
- Wis. Stat. §§ 302.045, 302.05: ERP and CIP.
- Wis. Admin. Code § PD 3.03: indigency criteria.
- Wis. Admin. Code ch. HA 2: revocation hearings.
- Wis. Stat. § 969.12(2): sureties.

Case citations are to the official reporters; readers should confirm subsequent history before relying on any decision.

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